

AFFIDAVIT OF SERVICE

State of Florida

County of MANATEE

Twelfth Judicial Circuit

Colonial Manor MHC Holding LLC,
Plaintiff / Petitioner,

vs. Magdaline E. STEPHENS, David D. HANSEN Amyx, Case No. 2024CC-3692
Deborah Amyx, Philip A. Mundy, & Any Unknown
Defendant/Respondent Party(s) in Possession

For: William C. Price III, Esq.
522 12th St. W.

Bradenton, FL 34205

Received by George Hooper on 11-18-24 at 12:45 A.M./P.M.

Eviction Summons/Residential Civil Cover Sheet
Complaint for Possession Pursuant to Chapter 723

to be served on:

Any Unknown Party(s) in Possession: 900 9th Ave. E. Lot 108
Palmetto, FL 34221

Subpoena was served on: Any Unknown Party(s) in Possession, in accordance with Florida State Statute 48.031(1)(4).

I, George Hooper, being duly sworn, depose and say that on 11/12/24 at 6:55 am/pm I:

Individually served by delivering a true copy of the ORIGINAL

Eviction Summons/Residential Civil Cover Sheet
Complaint for Possession Pursuant to Chapter 723

with the date and hour of service endorsed there on by me, to:

Any Unknown Party(s) in Possession, at his / her usual place of Moode,

accepted by Posted on Door After, and informed said person of the contents therein, in compliance with state statutes. 3 attempts on, After work hours & on weekend

Description of Person left with:

Age: _____ Gender: M F Race: _____ Height: _____ Weight: _____ Hair: _____ Glasses: Y N

I ACKNOWLEDGE that I have no interest in the above action, and have legal and proper authority in the jurisdiction in which this service was made. Under penalty of perjury, I declare that I have read the foregoing and that the facts stated therein are true.

Signed on 11/13/24

George Hooper
George Hooper CPS 1013



IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

EVICTIION SUMMONS/RESIDENTIAL

CASE NUMBER: 2024-CC- 3692

PLAINTIFF/PETITIONER	vs. DEFENDANT/RESPONDENT
COLONIAL MANOR MHC HOLDINGS, LLC	JACQUELINE E. STEPHENS, DAVID JACKSON AMYX, DEBORAH AMYX, PHILIP A. MUNDY and ANY UNKNOWN PARTY(S) IN POSSESSION

TO: ANY UNKNOWN PARTY(S) IN POSSESSION
900 9th Ave East, Lot #108
Palmello, FL 34221

PLEASE READ CAREFULLY

You are being sued by Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC to require you to move out of the property located at 900 9th Avenue East, Lot #108, the place where you are living, for the reasons given in the attached complaint. You are entitled to a trial to decide whether you can be required to move, but you **MUST** do **ALL** of the things listed below. You must do them within 5 days (not including Saturday, Sunday or any legal holiday) after the date these papers were given to you or to a person who lives with you or were posted to your home.

THE THINGS YOU MUST DO ARE AS FOLLOWS:

- (1) Write down the reason(s) why you think you should not be forced to move. The written reason(s) must be given to the clerk of the court at the Manatee County Courthouse, 1115 Manatee Ave. West, P.O. Box 25400, Bradenton, Florida 34206.
- (2) Mail or give a copy of the written reason(s) to:

WILLIAM C. PRICE, III, ESQUIRE
522 Twelfth Street, West
Bradenton, Florida 34205
Telephone: (941) 747-8001
pleadings@wcpicelaw.com

- (3) Pay the clerk of court the rent that is due. You **MUST** pay the clerk of the court the rent each time it becomes due until the lawsuit is over. If you believe that the amount claimed in the complaint is incorrect, you should file with the clerk of the court a motion to have the court determine the amount to be paid. If you file a motion, you must attach to the motion any documents supporting your position and mail or give a copy of the motion to the Plaintiff/Landlord/Plaintiff's/Landlord's attorney.

- (4) If you file a motion to have the court determine the amount of rent to be paid to the clerk of the court, you must immediately contact the office of the judge to whom the case is assigned to schedule a hearing to decide what amount should be paid to the clerk of the court while the lawsuit is pending.

CAUTION: Any payment to the Clerk of Circuit Court must be tendered in cash, cashier's check or money order and must be accompanied by payment of the Clerk's Registry Fee of 3% of the first \$500 and 1.5% of the balance over \$500. Payment should be payable to Angelina Colonnese, Clerk of Circuit Court.

IF YOU DO NOT DO ALL OF THE THINGS SPECIFIED ABOVE WITHIN 5 WORKING DAYS AFTER THE DATE THAT THESE PAPERS WERE GIVEN TO YOU OR TO A PERSON WHO LIVES WITH YOU OR WERE POSTED AT YOUR HOME, YOU MAY BE EVICTED WITHOUT A HEARING OR FURTHER NOTICE.

- (5) If the attached complaint contains a claim for money damages (such as unpaid rent), you must respond to that claim separately. You must write down the reasons why you believe that you do not owe paragraph (1) above, and you must mail or give a copy of your written reasons to the landlord/plaintiff/attorney at the address specified in paragraph (2) above. This must be done within 20 days after the date these papers were given to you or to a person who lives with you. This obligation is separate from the requirement of answering the claim for eviction within 5 working days after these papers were given to you or to a person who lives with you or were posted at your home.

THE STATE OF FLORIDA:

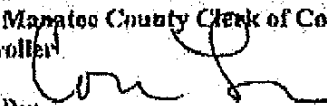
TO ALL AND SINGULAR THE SHERIFFS OF SAID STATE:

YOU ARE HEREBY COMMANDED to serve this summons and a copy the complaint in this lawsuit on the above named defendant.

DATED on NOVEMBER 4, 2024.



ANGELINA "ANGEL" COLONNESO
Manatee County Clerk of Courts and
Recorder

By: 
Deputy Clerk

NOTICE: If you are a person with a disability who needs any accommodation in order to participate in this proceeding, you are entitled, at no cost to you, to the provision of certain assistance. Please contact the Manatee County Jury Office, Post Office Box 25400, Bradenton, Florida, 34206, (941) 741-4062, at least seven (7) days before your scheduled court appearance, or immediately upon receiving this notification if the time before the scheduled appearance is less than seven (7) days; if you are hearing or voice impaired, call 711.

Si usted es una persona con una incapacidad que necesita cualquier acomodación en orden de participar en el procedimiento, Usted está invitado, a no costo suyo, la provisión de cierta ayuda. Favor de contactar al Manatee County Jury Office, Post Office Box 25400, Bradenton, Florida, 34206 (941) 741-4062, dentro de siete días laborables antes de su audiencia tribunal or inmediatamente mente al recibir esta notificación si su audiencia tribunal es menos de siete días; si usted tiene una incapacidad de oír o hablar llame al 711.

Page 2 of 2

In and for Manatee County:

If you cannot afford an attorney, you may contact Legal Aid of Manatee at (941) 747-1628 or www.legalaidofmanatee.org or Gulfcoast Legal Services at (941) 746-6151 or www.gulfcoastlegal.org. If you do not qualify for free legal assistance or do not know an attorney, you may email an attorney referral service (listed in the phone book) or contact the Florida Bar Lawyer Referral Service at (800)342-8011 or www.floridabar.org/public/lrs/.

"2024CC003692AX" 209961720 Filed at Manatee County Clerk 10/30/2024 10:57:48 PM EDT

"2024CC003692AX" 211297007 Filed at Manatee County Clerk 11/19/2024 04:21:53 PM EST

"2024CC003692AX" 212257789 Filed at Manatee County Clerk 12/05/2024 02:09:43 PM EST

AFFIDAVIT OF SERVICE

State of Florida

County of

MANATEE

Twelfth Judicial Circuit

Colonial Manor MHC Holdings, LLC.
Plaintiff / Petitioner,

vs. Jacqueline E. Stephens, David Jackson Amyx, Case No. 2024-CC-3692
Deborah Amyx, Philip A. Moody & Any Unknown
Defendant/Respondent Party(s) in Possession

For: William C. Price III, Esquire
522 N. W. 12th St.
Bradenton, FL 34205

Received by George Hooper on 11-5-24 at 12:45 A.M. (P.M.)
Eviction Summons/Residential, Civil Cover Sheet,
Complaint for Possession Pursuant to Chapter 723

to be served on:

David Jackson Amyx: 900 9th Av. E. Lot #108 Palmetto FL 34221

Subpoena was served on: David Jackson Amyx, in accordance with Florida State Statute 48.031(1)(A).

I, George Hooper, being duly sworn, depose and say that on 11-5-24 at 1:50 am (pm) I:

Individually served by delivering a true copy of the ORIGINAL

Eviction Summons/Residential, Civil Cover Sheet,
Complaint for Possession Pursuant to Chapter 723

with the date and hour of service endorsed there on by me, to:

David Jackson Amyx, at his/her usual place of Abode,

accepted by David Jackson Amyx, and informed said person of the contents therein, in compliance with state statutes.

Description of Person left with:

Age: 50+ Gender: (M) Race: White Height: 5'8" Weight: 150 Hair: Grey Glasses: Y/N

I ACKNOWLEDGE that I have no interest in the above action, and have legal and proper authority in the jurisdiction in which this service was made. Under penalty of perjury, I declare that I have read the foregoing and that the facts stated therein are true.

Signed on 11/13/24

George Hooper
George Hooper CPS 1013

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

EVICTION SUMMONS/RESIDENTIAL

CASH NUMBER: 2024-CC-3692

PLAINTIFF/PETITIONER	vs. DEFENDANT/RESPONDENT
COLONIAL MANOR MHC HOLDINGS, LLC	JACQUELINE E. STEPHENS, DAVID JACKSON AMYX, DEBORAH AMYX, PHILIP A. MUNDY and ANY UNKNOWN PARTY(S) IN POSSESSION

TO: DAVID JACKSON AMYX
900 9th Ave East, Lot #108
Palmetto, FL 34221

PLEASE READ CAREFULLY

*WM 307
5'8" / 150 11-8-24
1:50 PM
#10/2
Judy*

You are being sued by Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC to require you to move out of the property located at 900 9th Avenue East, Lot #108, the place where you are living, for the reasons given in the attached complaint. You are entitled to a trial to decide whether you can be required to move, but you MUST do ALL of the things listed below. You must do them within 5 days (not including Saturday, Sunday or any legal holiday) after the date these papers were given to you or to a person who lives with you or were posted to your home.

THE THINGS YOU MUST DO ARE AS FOLLOWS:

(1) Write down the reason(s) why you think you should not be forced to move. The written reason(s) must be given to the clerk of the court at the Manatee County Courthouse, 1115 Manatee Ave. West, P.O. Box 25400, Bradenton, Florida 34206.

(2) Mail or give a copy of the written reason(s) to:

WILLIAM C. PRICE, III, ESQUIRE
522 Twelfth Street, West
Bradenton, Florida 34205
Telephone: (941) 747-8001
pleadings@wcpicelaw.com

(3) Pay the clerk of court the rent that is due. You MUST pay the clerk of the court the rent each time it becomes due until the lawsuit is over. If you believe that the amount claimed in the complaint is incorrect, you should file with the clerk of the court a motion to have the court determine the amount to be paid. If you file a motion, you must attach to the motion any documents supporting your position and mail or give a copy of the motion to the Plaintiff/Landlord/Plaintiff's/Landlord's attorney.

- (4) If you file a motion to have the court determine the amount of rent to be paid to the clerk of the court, you must immediately contact the office of the judge to whom the case is assigned to schedule a hearing to decide what amount should be paid to the clerk of the court while the lawsuit is pending.

CAUTION: Any payment to the Clerk of Circuit Court must be tendered in cash, cashier's check or money order and must be accompanied by payment of the Clerk's Registry fee of 3% of the first \$500 and 1.5% of the balance over \$500. Payment should be payable to Angelina Colonneso, Clerk of Circuit Court.

IF YOU DO NOT DO ALL OF THE THINGS SPECIFIED ABOVE WITHIN 5 WORKING DAYS AFTER THE DATE THAT THESE PAPERS WERE GIVEN TO YOU OR TO A PERSON WHO LIVES WITH YOU OR WERE POSTED AT YOUR HOME, YOU MAY BE EVICTED WITHOUT A HEARING OR FURTHER NOTICE.

- (5) If the attached complaint contains a claim for money damages (such as unpaid rent), you must respond to that claim separately. You must write down the reasons why you believe that you do not owe paragraph (1) above, and you must mail or give a copy of your written reasons to the landlord/plaintiff/attorney at the address specified in paragraph(2) above. This must be done within 20 days after the date these papers were given to you or to a person who lives with you. This obligation is separate from the requirement of answering the claim for eviction within 5 working days after these papers were given to you or to a person who lives with you or were posted at your home.

THE STATE OF FLORIDA:

TO ALL AND SINGULAR THE SHERIFFS OF SAID STATE:

YOU ARE HEREBY COMMANDED to serve this summons and a copy the complaint in this lawsuit on the above named defendant.

DATED on NOVEMBER 4, 2024.



ANGELINA "ANGEL" COLONNESO
Manatee County Clerk of Courts and
Teller

By: 

Deputy Clerk

NOTICE: If you are a person with a disability who needs any accommodation in order to participate in this proceeding, you are entitled, at no cost to you, to the provision of certain assistance. Please contact the Manatee County Jury Office, Post Office Box 25400, Bradenton, Florida, 34206, (941) 741-4062, at least seven (7) days before your scheduled court appearance, or immediately upon receiving this notification if the time before the scheduled appearance is less than seven (7) days; if you are hearing or voice impaired, call 711.

Si usted es una persona con una incapacidad que necesita cualquier acomodación en orden de participar en el procedimiento, Usted esta intitulado, a no costo suyo, la provisión de cierta ayuda. Favor de contactar al Manatee County Jury Office, Post Office Box 25400, Bradenton, Florida, 34206 (941) 741-4062, dentro de siete días laborables antes de su audlencia tribunal or inmediatamente mientre al recibir esta notificación si su audlencia tribunal es menos de siete días; si usted tiene una incapacidad de oír o hablar llame al 711.

In and for Manatee County:

Page 2 of 2

If you cannot afford an attorney, you may contact Legal Aid of Manasota at (941) 747-1628 or www.legalaidofmanasota.org or Gulfcoast Legal Services at (843) 746-6151 or www.gulfcoastlegal.org. If you do not qualify for free legal assistance or do not know an attorney, you may email an attorney referral service (listed in the phone book) or contact the Florida Bar Lawyer Referral Service at (800)342-8011 or www.floridabar.org/public/irs/.

"2024CC003092AX" 209961720 Filed at Manatee County Clerk 10/30/2024 10:57:48 PM EDT

"2024CC003692AX" 211297007 Filed at Manatee County Clerk 11/19/2024 04:21:53 PM EST

"2024CC003692AX" 212257789 Filed at Manatee County Clerk 12/05/2024 02:09:43 PM EST

NON-SERVICE RETURN		Court Stamp Here
Court	IN THE COUNTY COURT IN AND FOR MANATEE COUNTY, FLORIDA	
Plaintiff	COLONIAL MANOR MHC HOLDINGS, LLC	Case # 2024-CC-3692
Defendant	JACQUELINE E. STEPHENS, DAVID JACKSON AMYX, DEBORAH AMYX, PHILIP A. MUNDY, ANY UNKNOWN PARTY(S) IN POSSESSION	Hearing Date
Person to be Served	Phillip Mundy	Came to Hand Date/Time 11/18/2024 3:24 PM
Reason Unable to Serve	Unknown	Non-Service Date/Time 11/18/2024 7:44 PM
Documents	Exhibits; Complaint; Summons; CIVIL COVER SHEET	Service Fee \$95.00

After due search, careful inquiry and diligent attempts at: 9618 State Route 269, Bellevue, Erie County, OH 44811. I have been unable to effect service of process upon Phillip Mundy for the following reasons:

11/18/2024 7:44 PM: I spoke with an individual who identified themselves as the resident and they stated subject unknown. At the address I observed a call/mail box listing another and a package/mail addressed to another. I spoke with a neighbor who says not resident and a property manager/landlord who says not resident. So this address is occupied by a gentleman named Bruce, Mr. Cook lives in the building in the back of the lot, the trailer in question has been moved from location for the better part of 10 years. Nobody at this location has ever heard of a Mr. Phillip mundy.

Notary not required pursuant to F.S. 92.525(2).

I am over 18 years of age, not a party to nor interested in this case and I have the proper authority in the jurisdiction where I effected service, pursuant to Florida Statute Chapter 48. Per 28 U.S.C. § 1746, I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Jacob McCarren

Process Server ID

11/19/2024

Date Executed

Ref Phillip Mundy Colonial Lot #108



abc legal

William Price
<pleadings@wcpriecaw.com>

Tracking # 0149344662



"2024CC003692AX" 211297007 Filed at Manatee County Clerk 11/19/2024 04:21:53 PM EST

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IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

EVICTIION SUMMONS/RESIDENTIAL

CASE NUMBER: 2024-CC- 3692

PLAINTIFF/PETITIONER	vs. DEFENDANT/RESPONDENT
COLONIAL MANOR MHC HOLDINGS, LLC	JACQUELINE B. STEPHENS, DAVID JACKSON AMYX, DEBORAH AMYX, PHILIP A. MUNDY and ANY UNKNOWN PARTY(s) IN POSSESSION

TO: PHILIP MUNDY
9618 State Route 269
Bellevoe, OH 44811-9683

PLEASE READ CAREFULLY

You are being sued by Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC to require you to move out of the property located at 900 9th Avenue East, Lot #108, the place where you are living, for the reasons given in the attached complaint. You are entitled to a trial to decide whether you can be required to move, but you **MUST** do **ALL** of the things listed below. You must do them within 5 days (not including Saturday, Sunday or any legal holiday) after the date these papers were given to you or to a person who lives with you or were posted to your home.

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WILLIAM C. PRICE, III, ESQUIRE
522 Twelfth Street, West
Bradenton, Florida 34205
Telephone: (941) 747-8001
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- (4) If you file a motion to have the court determine the amount of rent to be paid to the clerk of the court, you must immediately contact the office of the judge to whom the case is assigned to schedule a hearing to decide what amount should be paid to the clerk of the court while the lawsuit is pending.

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THE STATE OF FLORIDA:

TO ALL AND SINGULAR THE SHERIFFS OF SAID STATE:

YOU ARE HEREBY COMMANDED to serve this summons and a copy the complaint in this lawsuit on the above named defendant.

DATED on NOVEMBER 4, 2024.



ANGELINA "ANGEL" COLONNESE
Manatee County Clerk of Courts and
Recorder

[Signature]

Deputy Clerk

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In and for Manatee County:

Page 2 of 2

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AFFIDAVIT OF SERVICE

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Twelfth Judicial Circuit

Colonial Manor MHC Holdings, LLC
Plaintiff / Petitioner,

vs. Jacqueline E. Stephens, David Jackson Amyx

Case No. 2024-CC-3692

Deborah Amyx, Philip A. Mundy, and Any Unknown
Defendant/Respondent party(ies) in possession

For: William C. Price, III, Esq.
522 12th St. W.

Bradenton, FL 34205

Received by George Hooper on 11-8-24 at 12:45 A.M./P.M.

Eviction Summons/Residential, Civil Cover Sheet,
Complaint for Possession Pursuant to Chapter 723

to be served on:

Jacqueline E. Stephens: 900 9th Ave E. Lot #108 Palmetto, FL
34221

Subpoena was served on: Jacqueline E. Stephens, in accordance with Florida State
Statute 48.031(L)(A).

I, George Hooper, being duly sworn, depose and say that on 11-8-24 at 1:50 am/pm:

Individually served by delivering a true copy of the ORIGINAL

Eviction Summons/Residential, Civil Cover Sheet,
Complaint for Possession Pursuant to Chapter 723

with the date and hour of service endorsed there on by me, to:

Jacqueline E. Stephens, at his/her usual place of Abode

accepted by Jacqueline E. Stephens, and informed said person of the contents therein,
in compliance with state statutes.

Description of Person left with:

Age: 70+ Gender: M/F Race: White Height: 5'7" Weight: 140 Hair: gray Glasses: Y/N

I ACKNOWLEDGE that I have no interest in the above action, and have legal and proper authority in the jurisdiction
in which this service was made. Under penalty of perjury, I declare that I have read the foregoing and that the facts
stated therein are true.

Signed on 11/13/24

George Hooper
George Hooper, CPS 1013

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

EVICTIION SUMMONS/RESIDENTIAL

CASE NUMBER: 2024-CC- 3692

PLAINTIFF/PETITIONER	vs. DEFENDANT/RESPONDENT
COLONIAL MANOR MHC HOLDINGS, LLC	JACQUELINE E. STEPHENS, DAVID JACKSON AMYX, DEBORAH AMYX, PHILIP A. MUNDY and ANY UNKNOWN PARTY(S) IN POSSESSION

TO: JACQUELINE E. STEPHENS
900 9th Ave East; Lot #108
Palmetto, FL 34221

PLEASE READ CAREFULLY

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Telephone: (941) 747-8001
pleadings@wcpriecelay.com

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Page 1 of 2.

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**THE STATE OF FLORIDA:
TO ALL AND SINGULAR THE SHERIFFS OF SAID STATE:**

YOU ARE HEREBY COMMANDED to serve this summons and a copy the complaint in this lawsuit on the above named defendant.

DATED on NOVEMBER 4, 2024.



ANGELINA "ANGEL" COLONNESE
Manatee County Clerk of Courts and
Controller

By: 

Deputy Clerk

NOTICE: If you are a person with a disability who needs any accommodation in order to participate in this proceeding, you are entitled, at no cost to you, to the provision of certain assistance. Please contact the Manatee County Jury Office, Post Office Box 25400, Bradenton, Florida, 34206, (941) 741-4062, at least seven (7) days before your scheduled court appearance, or immediately upon receiving this notification if the time before the scheduled appearance is less than seven (7) days; if you are hearing or voice impaired, call 711.

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Page 2 of 2

In and for Manatee County:

If you cannot afford an attorney, you may contact Legal Aid of Manasota at (941) 747-1628 or www.legalaidofmanasota.org or Gulfcoast Legal Services at (941) 745-6151 or www.gulfcoastlegal.org. If you do not qualify for free legal assistance or do not know an attorney, you may email an attorney referral service (listed in the phone book) or contact the Florida Bar Lawyer Referral Service at (800)342-8011 or www.floridabar.org/public/lrs/.

"2024CC003692AX" 209981720 Filed at Manatee County Clerk 10/30/2024 10:57:48 PM EDT

"2024CC003692AX" 211297007 Filed at Manatee County Clerk 11/19/2024 04:21:53 PM EST

"2024CC003692AX" 212257789 Filed at Manatee County Clerk 12/05/2024 02:09:43 PM EST

AFFIDAVIT OF SERVICE

State of Florida

County of

MANATEE

Twelfth Judicial Circuit

Colonial Manor MHC Holdings, LLC.
Plaintiff / Petitioner,

vs. Jacqueline E. STEPHENS, DAVID JACKSON Amyx, Case No. 2024-CC-3692

Deborah Amyx, Philip A. Mandy & Any Unknown
Defendant/Respondent Party(s) in possession

For: William C. Price, III, Esq.
522 12th St. W.
Bradenton, FL 34205

Received by George Hooper on 11-8-24 at 12:45 A.M./P.M.
Eviction Summons/Residential, Civil Cover Sheet,
Complaint for Possession Pursuant to Chapter 723

to be served on:

Deborah Amyx: 900 9th Av. E. Lot #108 Palmetto FL 34221

Subpoena was served on: Deborah Amyx, in accordance with Florida State
Statute 48.031 (1)(A).

I, George Hooper, being duly sworn, depose and say that on 11-8-24 at 1:50 am/pm:

Individually served by delivering a true copy of the ORIGINAL

Eviction Summons/Residential, Civil Cover Sheet,
Complaint for Possession Pursuant to Chapter 723

with the date and hour of service endorsed there on by me, to:

Deborah Amyx, at his/her usual place of Abode,

accepted by DAVID JACKSON Amyx, and informed said person of the contents therein,
in compliance with state statutes.

Description of Person left with:

Age: 50+ Gender: M/F Race: White Height: 5'8" Weight: 150 Hair: Grey Glasses: Y/N

I ACKNOWLEDGE that I have no interest in the above action, and have legal and proper authority in the jurisdiction
in which this service was made. Under penalty of perjury, I declare that I have read the foregoing and that the facts
stated therein are true.

Signed on 11/13/24

George Hooper
George Hooper CPS 1013

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

EVICTIION SUMMONS/RESIDENTIAL

CASE NUMBER: 2024-CC-3692

PLAINTIFF/PETITIONER	vs. DEFENDANT/RESPONDENT
COLONIAL MANOR MHC HOLDINGS, LLC	JACQUELINE E. STEPHENS, DAVID JACKSON AMYX, DEBORAH AMYX, PHILIP A. MUNDY and ANY UNKNOWN PARTY(s) IN POSSESSION

TO: DEBORAH AMYX
900 9th Ave East; Lot #108
Palmetto, FL 34221

PLEASE READ CAREFULLY

You are being sued by Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC to require you to move out of the property located at 900 9th Avenue East; Lot #108, the place where you are living, for the reasons given in the attached complaint. You are entitled to a trial to decide whether you can be required to move, but you **MUST** do ALL of the things listed below. You must do them within 5 days (not including Saturday, Sunday or any legal holiday) after the date these papers were given to you or to a person who lives with you or were posted to your home.

THE THINGS YOU MUST DO ARE AS FOLLOWS:

(1) Write down the reason(s) why you think you should not be forced to move. The written reason(s) must be given to the clerk of the court at the Manatee County Courthouse, 1115 Manatee Ave. West, P.O. Box 25400, Bradenton, Florida 34206.

(2) Mail or give a copy of the written reason(s) to:

WILLIAM C. PRICE, III, ESQUIRE
522 Twelfth Street, West
Bradenton, Florida 34205
Telephone: (941) 747-8001
pleadings@wcpriecelaw.com

(3) Pay the clerk of court the rent that is due. You **MUST** pay the clerk of the court the rent each time it becomes due until the lawsuit is over. If you believe that the amount claimed in the complaint is incorrect, you should file with the clerk of the court a motion to have the court determine the amount to be paid. If you file a motion, you must attach to the motion any documents supporting your position and mail or give a copy of the motion to the Plaintiff/Landlord/Plaintiff's/Landlord's attorney.

Page 1 of 2

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- (4) If you file a motion to have the court determine the amount of rent to be paid to the clerk of the court, you must immediately contact the office of the judge to whom the case is assigned to schedule a hearing to decide what amount should be paid to the clerk of the court while the lawsuit is pending.

CAUTION: Any payment to the Clerk of Circuit Court must be tendered in cash, cashier's check or money order and must be accompanied by payment of the Clerk's Registry Fee of 3% of the first \$500 and 1.5% of the balance over \$500. Payment should be payable to Angelina Colonnese, Clerk of Circuit Court.

IF YOU DO NOT DO ALL OF THE THINGS SPECIFIED ABOVE WITHIN 5 WORKING DAYS AFTER THE DATE THAT THESE PAPERS WERE GIVEN TO YOU OR TO A PERSON WHO LIVES WITH YOU OR WERE POSTED AT YOUR HOME, YOU MAY BE EVICTED WITHOUT A HEARING OR FURTHER NOTICE.

- (5) If the attached complaint contains a claim for money damages (such as unpaid rent), you must respond to that claim separately. You must write down the reasons why you believe that you do not owe paragraph (1) above, and you must mail or give a copy of your written reasons to the landlord/plaintiff/attorney at the address specified in paragraph(2) above. This must be done within 20 days after the date these papers were given to you or to a person who lives with you. This obligation is separate from the requirement of answering the claim for eviction within 5 working days after these papers were given to you or to a person who lives with you or were posted at your home.

THE STATE OF FLORIDA:

TO ALL AND SINGULAR THE SHERIFFS OF SAID STATE:

YOU ARE HEREBY COMMANDED to serve this summons and a copy the complaint in this lawsuit on the above named defendant.

DATED on NOVEMBER 4, 2024.



ANGELINA "ANGEL" COLONNESO
Manatee County Clerk of Courts and
Recorder

By: 

Deputy Clerk

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IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC,
Plaintiff,

vs.

Case No.: 2024-CC-003692

JACQUELINE E. STEPHENS, DAVID JACKSON
AMYX, DEBORAH AMYX, PHILIP A. MUNDY
and ANY UNKNOWN PARTY(s) IN POSSESSION,
Defendants.

ORDER GRANTING FINAL JUDGMENT FOR POSSESSION

THIS CAUSE CAME ON TO BE HEARD on the Plaintiff's Motion for Writ of Possession in the above styled cause based upon the failure of any of the Defendants to pay rent into the Registry of the Court pursuant to Fla. Stat. §723.062(1), and the Court having reviewed the pleadings in this matter and being otherwise fully advised in the premises.

Florida law is clear that a tenant to a mobile home eviction is obligated not simply to state that it has defenses. A tenant must also pay into the Registry of the Court rent pursuant to Fla. Statutes §723.062; failure to do constitutes a waiver of any defenses and entitlement of the landlord to a writ of possession. The summonses in this cause stated the law and provided explicit instructions to the Defendants to pay rent accrued. Therefore, it is

ORDERED and ADJUDGED:

That the tenancy of Defendants, JACQUELINE E. STEPHENS, DAVID JACKSON AMYX, DEBORAH AMYX, PHILIP A. MUNDY and ANY UNKNOWN PARTY(s) IN POSSESSION, who occupy the home located at 900 9th Ave East Lot #108, Palmetto, Manatee County, Florida 34221, in Colonial Mobile Manor (the "Property"), is hereby terminated, and the



Clerk of Court **shall issue a Writ of Possession ten (10) days from the date hereof** directing the Sheriff of Manatee County, Florida to assist the Plaintiff in removing the Defendants from the premises located above and putting the Plaintiff in possession after first conspicuously posting the Writ of Possession for twenty-four (24) hours, together with any personal property, from the Property; Defendants shall be forever removed and barred from entry onto the Property forevermore.

Plaintiff shall be entitled upon execution of the writ of possession to the removal of the Defendants by the Manatee County Sheriff from the subject home and from all of Lot 108 in the park, and the Plaintiff shall also upon execution of the writ of possession be entitled to change the locks on the home pursuant to its right to store the home as provided by §723.062(2), Florida Statutes.

By changing the locks, Plaintiff is electing to store the home on the lot as allowed by the statute. Once the locks have been changed, Plaintiff is not required to provide a copy of the new keys to Defendants.

The Court reserves jurisdiction on the other issues of the Plaintiff's Complaint.

DONE AND ORDERED in Chambers at Bradenton, Manatee County, Florida, this
_____ day of _____, 2024.

JACQUELINE BLANTON STEELE
COUNTY JUDGE

cc: William C. Price, III, Esquire, 522 Twelfth Street West, Bradenton, FL 34205
Jacqueline E. Stephens, 900 9th Ave East, Lot #108, Palmetto, Florida, 34221
David Jackson Amyx, 900 9th Ave East, Lot #108, Palmetto, Florida, 34221
Deborah Amyx, 900 9th Ave East, Lot #108, Palmetto, Florida, 34221
Any Unknown Party(s) in Possession, 900 9th Ave East, Lot #108, Palmetto, Florida, 34221